
Too Bad for the Women or Does It Have to Be? Gender and Negotiation Research over the Past Twenty-Five Years

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One overriding question that scholars have addressed over the past twenty-five years is: are women the same or different from men when it comes to negotiating and what might explain these differences? The inquiry has shifted and has become more nuanced over time, but in its essence the issue of individual difference still dominates much of our thinking and research on the topic. The purpose of this article is to provide a structured overview of this considerable literature on gender and negotiation as it has evolved over the past twenty-five years. In doing this, the article highlights how the social construction of gender has generally changed the discourse from essentialist concepts of differences between men and women to seeing gender as a more complex and shifting dimension of individual identity that is shaped by the contexts in which negotiation occurs. The second purpose of this article is to consider how recent feminist perspectives on gender, which have shifted from viewing gender as a property of individuals to considering the role of institutionalized social practices that sustain gender differences and inequities, can be incorporated into our understanding of gender relations in negotiation theory, practice, and research.

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Introduction

It seems appropriate to begin this essay where *Negotiation Journal* founding editor Jeff Rubin began in 1975 — even though his review is more than twenty-five years old. The way Rubin and his colleague Bert Brown framed the issue in 1975 has not changed all that much. Rubin and Brown included sex of the negotiator as one of many individual background variables they considered, among them, age, race, nationality, intelligence, and religion.

Although researchers have shown a great deal of interest in gender and negotiation recently, publishing a number a number of rather comprehensive literature reviews (Kray and Thompson 2005; Stuhlmacher and Winkler 2006; Bowles and McGinn 2008), gender, like sex, is still treated primarily as a stable property of individual men and women because it is seen as one of an individual's most salient characteristics (Kray and Babcock 2006). The overriding concern that scholars typically address is one that has dominated the field since 1975 — are women the same or different from men when it comes to negotiating and what might explain these differences? The way this question is treated has shifted and has become more nuanced over time, but in its essence the issue of individual difference still dominates much of our thinking and research on the topic.

This individualistic treatment of gender raises a number of concerns. First, by focusing on individuals and their negotiating proclivities, we downplay the cultural and institutional mechanisms that create inequities, some of them around gender, that shape how gender relations in negotiations play out (Kolb and McGinn 2009). Further, the focus on gender as the difference between men and women elides the ways that other simultaneous dimensions of identity such as race, class, national identity, sexual orientation, and age intersect with gender in determining who comes to the table to negotiate and how they fare there (Holvino Forthcoming). Finally, representing gender primarily along the lines of difference puts responsibility for change and remedying any disadvantage solely on the individual — a “fix the woman” approach — limiting the possibilities for negotiating change in the cultures and institutions that potentially contribute to disparities in performance (Meyerson and Fletcher 2000).

My purpose in this article is twofold. The first is to provide a structured overview of the considerable literature on gender and negotiation as it has evolved since Rubin and Brown's review. In doing this, I will highlight how feminist views of gender — specifically, the social construction of gender (West and Zimmerman 1987; Deaux and Major 1990) — have generally

shifted the negotiation discourse from *essentialist* concepts of differences between men and women to views of gender as a more complex and shifting dimension of individual identity shaped by the *contexts* in which negotiation occurs. While these changes are commendable, in comparison to the breadth of current theory and research in the social sciences on gender, they are rather narrow in scope (and method). The second purpose of this essay, therefore, is to consider how recent feminist perspectives on gender, which have shifted from looking at gender as a property of individuals to the institutionalized social practices that sustain these gender differences, can be incorporated not only into our understanding of gender relations in negotiation practice but also as part of the larger negotiation canon.

The Body of Research on Gender and Negotiation

In the popular view, gender is an individual characteristic. It is reflected in who people are, how they behave, and how they see themselves (Wharton 2005). This perspective is embodied in sex difference research, where the issue of difference between men and women overwhelms the study of intragroup differences among groups of women and men. While the distinction is often made that *sex* is a biological category and *gender* a social one based on socialization and occupancy of different social roles (Miller 1976; Eagly 1987), in the negotiating field, these tend to be used interchangeably (Kolb and Coolidge 1991; Gelfand, Nishii, and Raver 2006). The sex difference research reported by Rubin and Brown suggested that it was the relative ease of measuring the differences between male and female negotiators that prompted the extensive study prior to 1976, and it was probably the lack of consistent findings that saw an erosion of interest in the 1980s (Bowles and McGinn 2008).¹

More recently, the explosion of research on the topic has been prompted by concerns about the gender gap in wages and achievement — the glass ceiling effects — that have women in organizations plateauing before they reach top leadership positions (see Babcock and Laschever 2003; Bowles, Babcock, and McGinn 2005). Despite the fact that they make up close to 50 percent of the labor force and graduate from college in greater numbers than men, women are still not anywhere near parity in the senior positions of corporations, professional services partnerships, and large-scale international organizations, nor likely to get there soon (Catalyst 2007). The compensation gap has been growing recently particularly among women of color. While there are a multitude of societal and organizational explanations for these phenomena (Valian 1998; Blau and Kahn 2007), women can take actions to remedy these situations, and one of them is to *negotiate* more proactively and effectively for wages and opportunity. It is in this spirit that much of this more recent work has been undertaken.

Studies of individual differences have told us a great deal about women's general deficiencies as negotiators. They are less likely than men to ask (Babcock and Laschever 2003), less likely to initiate negotiations (Small et al. 2007), less positively disposed toward negotiation (Kray and Babcock 2006), less confident (Watson 1994), and more likely to set lower goals (Stevens, Bavetta, and Gist 1993). When it comes to compensation, where meta-analyses show consistent gender differences (Stuhlmacher and Walters 1999), the problem seems to clearly lie with women. Studies show that women expect to receive less in compensation than do men (Major, McFarlin, and Gagnon 1984; Jackson, Gardner, and Sullivan 1992), do not feel the same entitlement to higher salaries as men do (Karman and Hartal 1994; Jost 1997), or place less value on pay than on other aspects of their jobs (Desmarais and Curtis 1997; Barron 2003). And these feelings translate into behavior that in turn affects outcomes. Researchers have observed that women demand and accept less in salary negotiations than do men (Stevens, Bavetta, and Gist 1993; Solnick 2001), are less confident and less satisfied with their negotiation performances (Watson and Hoffman 1996), and feel lower self-efficacy about their bargaining abilities (Stevens, Bavetta, and Gist 1993). Consistently, in this line of research, women are compared negatively to men, who typically approach a negotiation with an offensive orientation of seeing themselves entitled to and requesting a higher salary (Barron 2003). Thus, when men outperform women in salary negotiations, the reasons for these differences are often attributed to "problems" that women have (Stuhlmacher and Walters 1999).

Embedded in this work is the notion that one's gender is an essential and stable attribute of individuals. (Also embedded in this work is the unquestioned idea that higher salaries, more aggressive negotiation behavior, and greater personal confidence are normatively "better," when arguments could be made — and research has been done — to challenge these cultural assumptions.) Even though the claim is typically made that the focus is on gender, hence, a social, not essential, category, the effect is the same. Differences are attributed not to biology but to socialization, role theory, or entitlements, that are never explicitly connected to the findings (Gelfand, Nishii, and Raver 2006; Ely and Padavic 2007). In response to these shortcomings, scholars have moved away from explicitly examining differences between men and women as negotiators to focus more on the social and institutional processes that might activate gendered behavior. These include:

- gender identity or how negotiators "do gender" in the ways they take up roles and present themselves (West and Zimmerman 1987),
- social and cultural expectations that activate status-based stereotypes that affect the range of individual actions (Ridgeway 1997), and

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- how these expectations and assumptions become embedded in institutional and organizational practices that can create power differentials that affect negotiators and their choices (Kolb and McGinn 2009).

Doing Gender or Who Comes to the Table?

Rather than being an essential property of the self, the degree to which a negotiator takes up a gendered role and how that role is expressed is likely to be fluid and fragmented (Deaux and Major 1990; Ely and Padavic 2007). As negotiators, we have multiple social identities — for example, I am a white, female, Jewish grandmother, and professor of management. Which aspects of my identity are salient when I negotiate depends on a number of factors: the degree of overlap and integration among possible dimensions of my identity (Brewer and Pierce 2005; Ramarajan 2009) as well as the intergroup and intragroup dynamics that may be at play there (Proudford 1998). This more complex notion, what we have called “gender in all its complexity,” should modify our thinking about how gender connects to negotiation processes and outcomes (Holvino Forthcoming).

Few examples in which this more nuanced view of gender and identity has infused the research on gender and negotiation can be found. One exception is the work on relational self-construal (RSC). RSC is an effort to break down the traditional link between relational practice and women (Fletcher 1999) and to suggest that both women and men can act relationally, that this is not the exclusive province of one sex (Miller 1976). Michele Gelfand, Lisa Nishii, and Jana Raver (2006: 428), drawing from the work of Susan Cross and Laura Madison (1997), defined RSC as a view of the self as “fundamentally connected to other individuals” as distinct from the a-relational bias in much of the research on negotiation. From this perspective, Gelfand, Nishii, and Raver proposed a model that suggests the ways in which RSC can affect negotiator frames, judgment, goals, tactics, and outcomes. Jared Curhan and his colleagues (2008) have shown that negotiators who construe themselves relationally are more likely to make accommodations for a relationship, outcomes that can be seen to run counter to the efficient economic outcomes so prized in most of the research. Although RSC is an effort to move away from a gender difference perspective, the theoretical and empirical overlap between who demonstrates a higher level of RSC and women is considerable (Cross and Madison 1997). Indeed, the norm of individual self construal (and agency) is so taken for granted in most of the research in negotiation that it is typically not worth mentioning that research has shown it to be gendered masculine (Bakan 1966; Ely and Meyerson 2000).

Obviously, other dimensions of identity intersect with gender and affect *who* comes to the table and *what* happens there. One obvious category is motherhood. When women negotiate for maternity leave and other aspects of work related to pregnancy and birth, they find themselves

negotiating about roles, responsibilities, and more generally about perceptions of themselves in the workplace (Miller et al. 1997; Buzzanell and Liu 2007; Greenberg, Ladge, and Clair 2009). And when they do so, it can be from a position of disadvantage. Mothers are routinely offered less desirable assignments and lower compensation than women without children (Roth 2006; Correll, Benard, and Paik 2007). Hannah Riley Bowles and Kathleen McGinn (2008) have suggested explicitly that, for women, negotiation over pay and workplace conditions are interdependent with negotiations that occur in the private sphere (e.g., negotiations within marriage over house-keeping and childcare responsibilities).

Race, ethnicity, and other simultaneous dimensions of identity are also likely to affect how different groups of negotiators come to the table (Holvino Forthcoming). African-American women may be more likely to be assertive and self-confident when compared to their Asian, Latina, or white counterparts (Kondo 1990; Bell and Nkomo 2001; Holvino Forthcoming). For both African-American men and women, in contrast to their white counterparts, limited access to networks and mentors has negative impacts on compensation and other important organizational benefits (Dreher and Cox 1996; Wilkins and Gulati 1996; Seidel, Polzer, and Stewart 2000). These types of intragroup phenomena — looking within categories of men and women — need to be more explicitly incorporated into the intergroup work on gender and negotiation (Proudford 1998).

Social and Cultural Expectations or What Happens at the Table?

In contrast to the limited attention that researchers have paid to other dimensions of identity, the interactional dynamics that *trigger* gendered behavior have received considerable attention (Kray, Thompson, and Galinsky 2001; Bowles, Babcock, and McGinn 2005; Tinsley et al. 2009). The type of negotiation game seems to matter a great deal. When negotiations are distributive, that is, when parties negotiate over a single issue — typically something of economic value, such as price — research indicates significant gender differences (Bowles, Babcock, and McGinn 2005), and this type of negotiation dominates much of the research. In a review of the gender and negotiation literature, nineteen of thirty negotiation studies that involved dyads were distributive (Kray and Thompson 2005). Distributive bargaining has been seen to value a more masculine style — assertive, competitive, analytical — over approaches that are more associated with the feminine — compassionate, intuitive, collaborative. Because gender issues are more likely to be studied in distributive contexts, it is not surprising that women have not fared as well as men (Ayres 1991; Stuhlmacher and Walters 1999; Solnick 2001).

But, surprisingly, the findings are not that different when the game structure changes. In studies that used an integrative or mixed motive task

— situations in which more feminine skills would presumably be beneficial

— men still generally outperformed women (Calhoun and Smith 1999; Stuhlmacher, Citera, and Willis 2007). In their review, Laura Kray and Leigh Thompson (2005) concluded that there is no evidence to support the conclusion that female dyads are more likely to achieve joint gains in comparison to their male counterparts. Indeed, Curhan and his colleagues (2008) found that female dyads achieved lower joint economic gains than male dyads, a finding they attributed to more pronounced relational concerns on the part of the female negotiators. It may be that the structure of joint gain negotiation games, particularly as they are constructed in the laboratory, with their focus on trade and transaction, may still privilege masculine negotiating styles (Putnam and Kolb 2000) and so create additional hurdles for people who do not fit that profile.

Another approach to the study of gender and negotiations focuses not so much on the individual and what she or he does, but on how stereotyped gendered expectations affect action (Ridgeway and Correll 2004). Stereotyped expectations can enable or constrain the range of action. Patterns of subtle discrimination can be explained in part by these types of stereotypes, or what Virginia Valian (1998) calls *gender schemas*. Gender schemas are implicit sets of hypotheses or assumptions about sex differences. Such schemas, although not wholly inaccurate, can inject bias into evaluations of professional women's behavior, competence, and performance relative to men and to different groups of women and men. Across a range of settings, researchers have shown how gender schemas affect perceptions of height, accomplishments, hiring, promotion, access to leadership, and roles in major symphony orchestras (Steinpreis, Ritzke, and Anders 1999; Goldin and Rouse 2000; Fiske 2002; Eagly and Carli 2007). Women often are expected to demonstrate a high degree of concern for others and may pay a social price when they do *not* do so, and these expectations may be greater (or less) for women of color (Hurtado 1989; Holvino Forthcoming). This question has been recently applied to the topic of compensation negotiation; researchers found that women who asked for more money, reflective of a schema of self-interest, were viewed negatively, presumably because such behavior is generally inconsistent with the schema that characterizes women as less self-interested and that these schemas affect groups of women (and men) differently (Ayres 1991; Bowles, Babcock, and Lai 2007).

Gender schemas also help us decode some of the performance differences between men and women. Work on *stereotype threat* demonstrates how stereotypes can shape perceptions of competence and identity (Steele 1997). In the negotiation context, when gender stereotypes are mobilized, they can have a direct impact on the stereotyped negotiator's performance depending on the type of stereotype invoked (Kray, Thompson, and Galinsky 2001). Gender schemas can become internalized and affect how a

target sees himself or herself, perceptions that directly affect performance (Valian 1998). But they can also be *reacted* to and lose their gendered hold (Kray, Thompson, and Galinsky 2001)

The role a negotiator plays — whether advocating for herself as a principal or bargaining on behalf of others as agent — can also trigger gender in negotiations (Bowles, Babcock, and McGinn 2005). The argument is that gender-linked stereotypes make it costly for a woman to advocate freely for herself as a principal, but negotiating on behalf of others as an agent is seen as more consistent with the gender schema (Wade 2001). Indeed, when women negotiated on behalf of others they increased their performance significantly while there was no difference for men no matter whether they were principals or agents. Further, women negotiators expected to ask for more in compensation when they were doing it on behalf of others and not for themselves (Bowles, Babcock, and McGinn 2005). Mary Wade (2001) has suggested that women do not ask for themselves, especially around pay, because they have learned that they may lose more than they gain. The expectation that they will experience backlash as principals can cause women to lower their aspirations, even when they are mistaken about the possible outcomes (Grieg 2008). Catherine Tinsley and her colleagues (2009) tracked the double binds that women face when they are expected to be feminine at the same time as they need to be assertive in asking for what they want. Indeed, what some of the work on backlash demonstrates is that balancing empathy and assertiveness — a primary attribute of mutual gains negotiations — may be a challenge for some groups of women (Mnookin, Peppett, and Tulumello 2000).

Gendered Negotiated Orders or How Do Negotiations Play Out?

The research has moved away from essentializing gender differences to understanding something about variation in how negotiators take up gender roles and the ways that gender schemas and stereotypes might be operating particularly in negotiation over compensation and roles. The dominant mode of study, a reflection of the field more generally, is laboratory experiments that place men and women in identical negotiation situations and in which findings around gender differences have been shown to be more likely to occur (Eagly and Johannesen-Schmidt 2001). But even when contextual factors are considered, it is still the individual, particularly the individual woman and how she differs from her male colleagues, that is the focus. It is not surprising, therefore, that this focus on individual differences that targets only women for improvement would leave the theory and practice of negotiation basically untouched. As Amy Cohen observed in a critical review of my own work, “the challenge for feminist thinkers and educators working in negotiation and dispute resolution is to confront real cultural and institutional mechanisms of sex-based inequalities in ways that

move beyond the social process of (re)constituting gender as our only analytic response" (Cohen 2003: 173).

That is precisely where feminist scholarship has been moving for some time. Gender, rather than an attribute of individuals, is seen as an institutionalized system of social and cultural practices that constitute a *negotiated order* within which negotiations occur (Strauss 1978; Ridgeway 2001). One place to consider negotiated orders is within organizations, which are the settings for many of the negotiations of interest to those trying to account for compensation and leadership gaps.² Joan Acker defined the ways in which these organizations are gendered: "Advantage and disadvantage, exploitation and control, action and emotion, meaning and identity are patterned through and in terms of a distinction between male and female, masculine and feminine" (Acker 1990: 146). These gendered negotiated orders, what some call *second-generation discrimination practices*, shape the organizational contexts in which negotiations play out in terms of the issues to be negotiated, the forms that negotiation processes take, and, critically, contain the possibilities for change in the order itself (Strauss 1978; Sturm 2001; Kolb and McGinn 2009).³

These second-generation issues can take a variety of forms. Jobs and opportunities are gendered in the sense that certain people are seen to "fit" a job and others are not and these issues of fit can be complicated by race, class, and ethnicity. Issues of "fit" cover the gamut from shop floor supervisors to prison guards to Wall Street bankers to lawyers (Pierce 1995; Wilkins and Gulati 1996; Britton 2000; Skuratowicz and Hunter 2004; Roth 2006). The second-generation gender negotiation issues raised here are not about bargaining for a certain job and the accompanying compensation — they concern a much tougher issue of redefining the norms and expectations around what it takes to be seen as an appropriate fit and then to succeed in a given job or at a given level in an organization. This is not always easy for an individual to undertake on his or her own, but others can be enlisted to play an advocacy role.

Second-generation issues also cover what counts as work and how it gets valued. Joyce Fletcher (1999) described the invisible work of women engineers who try to anticipate problems before they happen, seek to integrate the work of others, and try to build a team (see Mumby and Putnam 1992), work that gets "disappeared." These examples, situated in contexts in which masculine approaches to work tend to be highly valued and feminine approaches to work underrated (Valian 1998), suggest that claiming the value of one's work so that it is recognized and rewarded is part of the gendering of negotiation as it occurs in a variety of workplaces (Martin 1994; Ashcraft 1999). But making that value visible can shift the norms about how jobs and roles are defined (Fletcher 1999).

A significant body of work documents the critical role of social networks in helping individuals gather information and support (Mizruchi and

Stearns 2001), secure positions (Fernandez and Weinberg 1997), negotiate compensation (Seidel, Polzer, and Stewart 2000), and generally influence others (Brass 1984). To the degree that networks are homophilous according to status, those who are different can lack the social capital that enables them to negotiate for opportunities and rewards (Wilkins and Gulati 1996; McGuire 2002; Roth 2006; Groysberg 2008). Indeed, both information gleaned from social networks and perceptions about access to that information can influence compensation negotiations and their outcomes (Seidel, Polzer, and Stewart 2000; Belliveau 2005; Bowles and McGinn 2008). Revealing information about pay, equal pay, and comparable worth has the potential to undo some of the gendered effects of exclusionary networks (Ridgeway and Correll 2004; Sturm 2009).

A final second-generation issue that influences negotiation over compensation and position is the connection between work and other aspects of life, what Bowles and McGinn (2008) described as a “two-level game.” Flexible work arrangements, whether formally applied for or informally managed “under the radar,” are also within the purview of negotiations. Choices to access these benefits are shaped by assumptions about who can make use of them (likely mothers) and how careers will be effected (often negatively) (Williams 2000; Rapoport et al. 2002; Bailyn 2007). Only certain people, therefore, might be seen as legitimately able to negotiate over flexible work policies. Men are less likely to negotiate for these benefits and they have been a subject of contention between black and white women (Scully 2009). Many organizations, however, are experimenting with ways to break this mold so that integrating work and personal life becomes the concern of a broader constituency (Bailyn 2007).

Negotiated Orders and the Implications for Negotiation Theory and Practice

When we focus on gendered negotiated orders, it expands not only our thinking about the range of issues that are potentially negotiable but helps us see the choices negotiators have to engage gender and to work for change at a more systemic level (Kolb et al. 2002). Gendered negotiated orders can impact the differential positioning of negotiators to bargain about particular issues. For example, there can be consequences to women when they negotiate for more compensation than they are offered (Wade 2001; Bowles, Babcock, and Lai 2007). For men, flexible work arrangements may not be seen as a legitimate issue to negotiate. For women of color, it may not be an option (Scully 2009). This would mean that when we consider the circumstances under which women do not ask, we need to attend to this differential positioning.

A second, although related, dimension of positioning is the degree to which a woman (or man) negotiates from a weak or strong position. While position and power may be seen as partially a function of alternatives and

hierarchical role, the power of micro-processes can silence people and therefore make it difficult, but not impossible, for them to negotiate about these second-generation issues (Gherardi 1996; Martin and Meyerson 1998). In certain contexts, gendered practices, such as client assignments and difficulty joining key networks, can mean that women can be disadvantaged when they come to negotiate for more compensation or a desired role (Roth 2006; Groysberg 2008). These practices can be resisted, however, through the use of strategic moves and turns and the achievement of small victories (Gherardi 1996; Kolb and Williams 2000; Meyerson 2001). Indeed, Boris Groysberg (2008) showed how women, excluded from key relationships within their firms, created external networks that positioned them advantageously (more so than their male colleagues) to negotiate conditions for their success when they changed jobs.

Gender schemas, more societal in nature, can act almost like an overlay on a particular negotiated order creating double binds that women face relative to their male counterparts. Negotiating for an opportunity, for example, means that a woman has to put herself forward when she is not being considered. This kind of self-promotion can run counter to schemas that see self-promotion as unfeminine (Rudman and Glick 1999, 2001; Catalyst 2007; Tinsley et al. 2009). Indirection may work better but might cause others to be unclear as to what one seeks (Carli 1990). The need to claim authority in a new leadership role and be seen as authentic in doing so might similarly limit the choices particular women have in negotiating for what they need to succeed (Ridgeway 2001; Eagly and Carli 2007). As a result of her experience with these gender schemas, a woman may internalize the double binds and choose to act in accordance with the feminine expectations over what a role might demand (Ely and Padavic 2007). That can mean not asking for what they need (Wade 2001; Babcock and Laschever 2003; Bowles, Babcock, and Lai 2007), backing off from taking on higher responsibility, or opting out. In our research on women who have taken on new leadership roles (Kolb and Kickul 2006), however, we found that women successfully worked around these double binds by connecting what they needed to succeed with what would be beneficial to their organizations (see Tinsley et al. 2009). This kind of dual agenda meant that the women were acting as both principals (advocating for what they needed) and agents (connecting it to the good of their unit) in a blurring of the traditional distinction (Kolb et al. 2002; Rapoport et al. 2002).

Most studies of negotiation specify the issues to be bargained over and focus primarily, but not exclusively, on the outcomes achieved. Studies of gender and negotiation generally follow a similar structure. When we look to these processes in organizations, we have found that the issues are not clearly defined but are socially constructed as part of the negotiation itself (Kolb and Bartunek 1992). First, there is the issue of what is actually negotiable. Some subjects are commonly seen as negotiable —

compensation and budgets — while others are more ambiguous. The situation becomes potentially more contentious when one considers ambiguity in the context of gendered work practices. In these situations, you can have a work practice that those in the majority see as normal and neutral — a nonissue — whereas a minority person experiences it as exclusionary. What this means is that before one negotiates to get to a potential resolution, it requires some buy-in to the meaning of the issue itself. Take, for example, the assignment of clients or customers to professionals. At Xerox, for example, African-American male sales representatives were routinely assigned smaller, less stable clients (Friedman and Deinard 1991). Likewise at Deloitte, women were overlooked when assignments to large clients were made (McCracken 2000). Not all would recognize that these work practices were gendered or race related. In terms of the process itself, it is difficult for people to believe that because organizational practices are gendered does not necessarily mean that individuals are bad actors or biased (Sturm 2001). But just opening a negotiation about a particular issue — say compensation or client assignment — can be read as implying that this is so. But many times these patterns, as a result of being negotiated over, become more visible over time and prompt grassroots efforts for reform (Friedman and Deinard 1991; McCracken 2000).

As I suggest in this article's title, the ways we have treated the issue of gender and negotiation over the years has placed the burden on women — she has to ask, she has to work around double binds, she has to deal with backlash. Once we locate gender and negotiation issues in a broader institutional frame, we can identify other approaches to changing the contexts — we can work to *undo gender* — in which negotiations occur (Deutsch 2007). As individuals negotiate in the face of second-generation issues, the negotiated order itself can shift (Fine 1987; Meyerson 2001). The negotiated order around work and personal life has changed dramatically with the adoption of new policies and structures around careers (Benko and Weisberg 2007). New narratives that reveal the structure and implication of second-generation issues make possible changes that can create more equitable arrangements (Ely and Meyerson 2000; McCracken 2000). Social networks and caucus groups can foster alliances that address systemic issues and bring a collective, potentially more powerful voice to them (Scully and Creed 2005; Scully 2009). Organizational catalysts (Sturm 2001, 2009) can play a major role in shaping the contexts in which individuals negotiate by providing them with information and helping them make key connections and uncover the root causes of inequalities. What characterizes these forms of intervention is that they have a *dual agenda* to enhance gender equity, creating a more level playing field for different groups of men and women, at the same time as they enhance organizational effectiveness (Kolb et al. 2002). When we focus on the negotiated order, we open up varied possibilities for changes in structures, practices, policies, and

procedures that have the potential to *undo gender* as it manifests itself in interactions (Deutsch 2007). Then maybe it will not have to be too bad for women after all.

NOTES

1. The coverage of gender in the *Negotiation Journal* has generally tracked this trend and has not, for the most part, been a major outlet for this line of research. Although there were a few articles on gender and dispute resolution (Douvan and Weingarten 1985; Gwartney-Gibbs and Lach 1991), the first article to treat the topic directly was by Carol Watson in 1994 where she suggested that power, not gender, explained some of the differences identified in the late 1980s and early 1990s. In 1996, two articles sought to tackle gender based on experiences in both the classroom and in organizations (Heen 1996; St. John 1996). Two articles appeared about ways to teach gender (Landry and Donnellon 1999; Kolb 2000). But in 2008, Iris Bohnet and Hannah Bowles edited a special issue devoted to gender in which most of the articles tracked sex differences in a number of different negotiation-related domains. In 2009, Catherine Tinsley, Sandra Cheldelin, Andrea Kupfer Schneider, and Emily Amanatullah used the presidential election to engage the more nuanced issues of how gendered double binds play out in negotiation.

2. Organizational structures and gender can impact the kinds of agreements reached. In hierarchical conditions, men are more likely to achieve economic efficiency, more so than women, but in more egalitarian structures, women outperformed men in terms of economic efficiency (Curhan et al. 2008).

3. Studying negotiations in closed systems within a laboratory setting misses precisely those gender effects likely to be most operative in organizations — the relative presence of women and men in power positions, the extent to which negotiations have included or benefited men and women differently in the past, and the awareness of multiple interrelated negotiations rather than one-shot deals.

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